

Opinion of the Court

be tried (or tried with all material evidence), no matter what official action may be in the future.⁹ The official acts claimed to have denied access may allegedly have caused the loss or inadequate settlement of a meritorious case, *e. g.*, *Foster v. Lake Jackson*, 28 F. 3d 425, 429 (CA5 1994); *Bell v. Milwaukee*, 746 F. 2d 1205, 1261 (CA7 1984) (“[T]he cover-up and resistance of the investigating police officers rendered hollow [the plaintiff’s] right to seek redress”), the loss of an opportunity to sue, *e. g.*, *Swekel v. River Rouge*, 119 F. 3d 1259, 1261 (CA6 1997) (police coverup extended throughout “time to file suit . . . under . . . statute of limitations”), or the loss of an opportunity to seek some particular order of relief, as Harbury alleges here. These cases do not look forward to a class of future litigation, but backward to a time when specific litigation ended poorly,¹⁰ or could not have commenced, or could have produced a remedy subsequently unobtainable.¹¹ The ultimate object of these sorts of access claims, then, is not the judgment in a further lawsuit, but simply the judgment in the access claim itself, in providing relief obtainable in no other suit in the future.

While the circumstances thus vary, the ultimate justification for recognizing each kind of claim is the same. Whether an access claim turns on a litigating opportunity yet to be gained or an opportunity already lost, the very point of recognizing any access claim is to provide some ef-

⁹ All such cases have been decided in the Courts of Appeals, see n. 7, *supra*; we assume, without deciding, the correctness of the decisions.

¹⁰ Some Courts of Appeals have held that an actual attempt to sue is a prerequisite to any such claim. See *Delew, supra*, at 1222–1223; *Swekel, supra*, at 1263–1264. See also App. to Pet. for Cert. 46a (District Court adopting this requirement). But cf. *Swekel, supra*, at 1264, n. 2 (“We recognize that in some instances it would be completely futile for a plaintiff to attempt to access the state court system. The Plaintiff, however, has not presented evidence that this is such a case”).

¹¹ Bifurcation into forward-looking and backward-looking access claims is a simplification, and not the only possible categorization, but it helps to focus the issues here.